

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 1660 of 2008

Md. Emdad alias Endad

.....Accused-petitioner.

-Versus-

State

.....opposite party.

No one appears

.....For the accused-petitioner.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.....For the opposite party

Heard and Judgment on 15.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 04.06.2008 passed by the learned Additional Sessions Judge, 1st Court, Khulna in Criminal Appeal No. 247 of 2005 dismissing the appeal and affirming the judgment and order of conviction and sentence dated 18.5.2003 passed by the learned Chief Judicial Magistrate, Khulna arising out of Khalishpur P.S Case No. 17 dated 18.05.2003 corresponding to G.R. No. 572 of 2003 convicting the accused-petitioner under Table 7(Ka) of Section 19(Ka) of the Narcotic Control Act, 1990 and sentencing him thereunder to suffer Rigorous

Imprisonment for a period of 01(one) year and also to pay a fine of Tk. 3000 (three thousand) in default to suffer rigorous imprisonment for 3(three) months more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

Today this matter appeared in the list for pronouncement of judgment.

No one found present to press the Rule on repeated calls in spite of fact that this criminal Revision has been appearing in the list for hearing with the name of the learned Advocate for the petitioner since long.

In view of the fact that this petty old criminal Revision arising out of 1(one) year sentence has been dragging before this Court for more than 15 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment it appears from the record that this Court on 23.11.2008 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 06(six) months and thereafter no one took any steps to extend the order of bail as a result of which said bail was expired long before on 23.05.2009. In that view of the matter, I have no hesitation to hold that the accused petitioner is fugitive from law.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been

observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Md. Emdad alias Endad is directed to surrender his bail bond within 3 (three) months from today to suffer rest of the sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.